

PAUL v DHALIWAL

23CV46672

PLAINTIFF COUNSEL'S MOTION TO WITHDRAW

Kevin Lipeles, on behalf of himself and Lipeles Law Group seeks to withdraw as attorneys of record for plaintiff, contending there has been a deterioration of the attorney-client relationship.

Counsel's declaration meets the statutory requirements.

Based on the foregoing, the Motion to Withdraw is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted Order.

GRAHAM v CHANCE, et al

23CV46928

PLAINTIFF'S MOTION FOR LEAVE TO FILE A FIRST AMENDED COMPLAINT

This matter involves a complaint for employment discrimination and harassment brought by Amber Graham ("Plaintiff") against Defendants Pure Aloha ("Aloha"), Steven J. Chance ("Chance") and Sarah M. Barry ("Barry") (collectively "Defendants.")

Now before the Court is Plaintiff's motion for leave to file a First Amended Complaint ("FAC.") The motion is opposed.

I. Factual and Procedural Background

On September 11, 2023 Plaintiff filed her complaint against Defendants alleging various employment discrimination and harassment arising out of a physical assault that she suffered while an employee of Aloha. Plaintiff alleges that she was wrongfully accused of using a derogatory term against an African-American co-worker and asked to leave work for the day. She alleges that when she attempted to retrieve her personal belongings, she was physically assaulted, resulting in significant injuries including a broken nose and a concussion. The next day, Plaintiff received a termination notice from Aloha signed by Barry citing the allegation of a racial slur and falsely stating that Plaintiff had refused to take place in an investigation.

Plaintiff's initial complaint alleged causes of action for harassment, discrimination, retaliation, wrongful termination, and intentional infliction of emotional distress.

Plaintiff now seeks to add a cause of action for false imprisonment based on new evidence obtained during discovery.

II. LEGAL STANDARD

Leave to amend is permitted under Code of Civil Procedure section 473, subdivision (a). California courts have a "policy of great liberality in allowing amendments at any stage